REQUEST FOR JUDICIAL INTERVENTION

UCS-840 (7/2012)

New York Supreme COURT, COUNTY OF New York

Index No: **Date Index Issued:**

CAPTION: Enter the complete case caption. Do not use et al or et ano. If more space is required, attach a caption rider sheet.

OPEH LLC

Plaintiff(s)/Petitioner(s)

-against-

MICHAEL E. BLEICH, ALEXIS K. BLEICH

Defendant(s)/Respondent(s)

For Court Clerk Use Only:

IAS Entry Date

Judge Assigned

RJI Date

NATURE OF ACTION OR PROCEEDING:

Check ONE box only and specify where indicated.

MATRIMONIAL

☐ Contested

NOTE: For all Matrimonial actions where the parties have children under the age of 18, complete and attach the **MATRIMONIAL RJI Addendum**. For Uncontested Matrimonial actions, use RJI form UD-13.

TORTS

☐ Asbestos
☐ Breast Implant
☐ Environmental:
☐ Medical, Dental, or Podiatric Malpractice
☐ Motor Vehicle
☐ Products Liability:
☐ Other Negligence:
☐ Other Professional Malpractice:
☐ Other Tort:

COMMERCIAL

☐ Business Entity (including corporations, partnerships, LLCs, etc.)
☒ Contract
☐ Insurance (where insurer is a party, except arbitration)
☐ UCC (including sales, negotiable instruments)
☐ Other Commercial:

NOTE: For Commercial Division assignment requests [22 NYCRR § 202.70(D)], complete and attach the **COMMERCIAL DIV RJI Addendum**.

REAL PROPERTY: How many properties does the application include?

☐ Condemnation
☐ Mortgage Foreclosure: ☐ Residential ☐ Commercial
Property Address:

NOTE: For Mortgage Foreclosure actions involving a one- to four-family, owner-occupied, residential property, or an owner-occupied condominium, complete and attach the **FORECLOSURE RJI Addendum.**

☐ Tax Certiorari - Section: Block: Lot:
☐ Tax Foreclosure
☐ Other Real Property:

OTHER MATTERS

☐ Certificate of Incorporation/Dissolution [see **NOTE** under Commercial]
☐ Emergency Medical Treatment
☐ Habeas Corpus
☐ Local Court Appeal
☐ Mechanic's Lien
☐ Name Change
☐ Pistol Permit Revocation Hearing
☐ Sale or Finance of Religious/Not-for-Profit Property
☐ Other:

SPECIAL PROCEEDINGS

☐ CPLR Article 75 (Arbitration) [see **NOTE** under Commercial]
☐ CPLR Article 78 (Body or Officer)
☐ Election Law
☐ MHL Article 9.60 (Kendra's Law)
☐ MHL Article 10 (Sex Offender Confinement-Initial)
☐ MHL Article 10 (Sex Offender Confinement-Review)
☐ MHL Article 81 (Guardianship)
☐ Other Mental Hygiene:
☐ Other Special Proceeding:

STATUS OF ACTION OR PROCEEDING:

Answer YES or NO for EVERY question AND enter additional information where indicated.

	YES	NO	
Has a summons and complaint or summons w/notice been filed?	☐	☒	If yes, date filed:
Has a summons and complaint or summons w/notice been served?	☐	☒	If yes, date served:
Is this action/proceeding being filed post-judgment?	☐	☒	If yes, judgment date:

NATURE OF JUDICIAL INTERVENTION: Check ONE box only AND enter additional information where indicated.

- ☐ Infant's Compromise
- ☐ Note of Issue and/or Certificate of Readiness
- ☐ Notice of Medical, Dental, or Podiatric Malpractice — Date Issue Joined:
- ☒ Notice of Motion — Relief Sought: — Return Date:
- ☐ Notice of Petition — Relief Sought: — Return Date:
- ☐ Order to Show Cause — Relief Sought: — Return Date:
- ☐ Other Ex Parte Application — Relief Sought:
- ☐ Poor Person Application
- ☐ Request for Preliminary Conference
- ☐ Residential Mortgage Foreclosure Settlement Conference
- ☐ Writ of Habeas Corpus
- ☐ Other:

RELATED CASES: List any related actions. For Matrimonial actions, include any related criminal and/or Famiy Court cases. If additional space is required, complete and attach the **RJI Addendum**. If none, leave blank.

Case Title	Index/Case No.	Court	Judge (if assigned)	Relationship to Instant Case

PARTIES: For parties without an attorney, check "Un-Rep" box AND enter party address, phone number and e-mail address in space provided. If additional space is required, complete and attach the **RJI Addendum**.

Un-Rep	Parties: List parties in caption order and indicate party role(s) (e.g., defendant; 3rd-party plaintiff).	Attorneys and/or Unrepresented Litigants: Provide attorney name, firm name, business address, phone number and e-mail address of all attorneys that have appeared in the case. For unrepresented litigants, provide address, phone number and e-mail address.	Issue Joined (Y/N):	Insurance Carrier(s):
☐	Name: OPEH LLC Role(s): Plaintiff/Petitioner	DAVID PFEFFER, TARTER KRINSKY & DROGIN, LLP, 1350 BROADWAY , NEW YORK, NY 10018, dpfeffer@tarterkrinsky.com	NO	
☒	Name: BLEICH, MICHAEL E. Role(s): Defendant/Respondent	13 Harrison Street, Unit 1, New York, NY 10013	NO	
☒	Name: BLEICH, ALEXIS K. Role(s): Defendant/Respondent	13 Harrison Street, Unit 1, New York, NY 10013	NO	
☐	Name: Role(s):			
☐	Name: Role(s):			

I AFFIRM UNDER THE PENALTY OF PERJURY THAT, TO MY KNOWLEDGE, OTHER THAN AS NOTED ABOVE, THERE ARE AND HAVE BEEN NO RELATED ACTIONS OR PROCEEDINGS, NOR HAS A REQUEST FOR JUDICIAL INTERVENTION PREVIOUSLY BEEN FILED IN THIS ACTION OR PROCEEDING.

Dated: 09/27/2018

DAVID JASON PFEFFER
SIGNATURE

2805075
ATTORNEY REGISTRATION NUMBER

DAVID JASON PFEFFER
PRINT OR TYPE NAME